



Department
of Health &
Social Care

*From Minister Stephen Kinnock MP
Minister of State for Care*

*39 Victoria Street
London
SW1H 0EU*

**Baroness Rock
Chair, Autism Act 2009 Special Inquiry Committee**

August 2025

Dear Baroness Rock,

Thank you for the opportunity to provide evidence to the Autism Act 2009 Special Inquiry Committee on 30th June 2025, alongside my Ministerial colleagues from the Department for Education and Department for Work and Pensions, and for the Committee's insightful questions and remarks.

Thank you also for the follow-up letter and questions that the Committee sent to the three Departments on 15th July 2025. Whilst we will work together to consider and respond to your letter in full, I wanted to take the opportunity to respond promptly to two clarification questions following the discussions that I had with the Committee on 30th June – namely, to respond to questions 4 and 6 in your letter.

Question 4 – Secretary of State's power to take action against a local authority or NHS body for failing to comply with statutory guidance to the Autism Act

Firstly, it might be helpful if I explain that that the legal duty for NHS bodies and local authorities under the Autism Act is to "act under" the statutory guidance; this is equivalent to a duty to have regard to the guidance. The legal duty is not to follow the guidance, but the expectation is that they will do so unless, in a particular case, there are very good reasons which justify not doing so.

In respect of powers for intervention by the Secretary of State, it might be helpful if I clarify that there are no statutory powers of intervention in the Autism Act 2009.

If a body, who is subject to a duty to act under the guidance, fails to take proper account of it or fails to follow it without very good reason, it is possible for that failure to be considered by the courts using their public law powers of judicial review. A judicial review of this type could be commenced by, for example, a private individual who might be affected by the failure. It is technically possible for the Secretary of State to commence such proceedings; however, it is highly likely that the Secretary of State would look to other actions short of legal proceedings in such circumstances. This could include for example, seeking full

account from the body concerned of any alleged unjustified failure to follow the guidance and engaging in dialogue about future compliance.

As the Committee is aware, the Secretary of State also has the power to revise the guidance from time to time, provided that he consults on proposed changes in line with the Act.

Question 6 – Survey

I offered to write with further information on a survey I had referenced during the oral evidence session. I would like to provide clarification on the survey I was referring to, which is part II of the Adult Psychiatric Morbidity Survey (APMS) which will provide an up-to-date indication of autism prevalence. Part 1 of the survey was published on 26th June 2025 and included an indication of prevalence of ADHD characteristics; Part II, which will include a chapter on autism, is expected in the autumn: <https://digital.nhs.uk/data-and-information/publications/statistical/adult-psychiatric-morbidity-survey>. I note that the Committee has requested some additional information on the APMS, which we will seek to address in our full response to the Committee.

As highlighted during the session, we are keen to have a better understanding of prevalence and of the significant growth in demand for assessment that has been seen in recent years, and we are currently looking at the best approach to exploring these issues further. The APMS publication in due course will be a useful piece of evidence to support this. Through its National Autism Steering Group, NHS England has also started discussions with stakeholders, including voluntary sector partners, to explore this matter.

Whilst the survey I referenced will therefore not be for integrated care boards or health professionals as originally indicated during the session, we will be considering how we best engage with relevant stakeholders, including those working within the NHS, alongside the voluntary sector, people with lived experience and others, to support development of the strategy.

As outlined, we will work with colleagues across the Department for Education and the Department for Work and Pensions, to send a full response to the Committee's follow-up questions in due course, but I wanted to take an earlier opportunity to provide clarity on those two specific questions.

I am also copying this reply to the Minister of State for Employment and the Minister of State for School Standards.

Yours sincerely,

A handwritten signature in black ink, appearing to read 'Stephen Kinnock', written over a light blue grid background.

STEPHEN KINNOCK MP